

Ram Bechan v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 20 May 2022 · Writ-C No. 4114 of 2022 · **Writ disposed; liberty to object under clause 6.8; coercive action stayed eight weeks.**

HEADNOTE

Without expressing any opinion on merits, a writ seeking to quash a 19.08.2021 demand notice of the Executive Engineer, Vidyut Vitran Khand, Shajganj, Jaunpur, was disposed of by granting liberty to file an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks, to be decided within the next four weeks after hearing, with coercive action stayed for eight weeks or till disposal of the objection, whichever is earlier.

FACTUAL SUMMARY

Ram Bechan petitioned the Allahabad High Court to quash a notice dated 19 August 2021 issued by the Executive Engineer, Vidyut Vitran Khand, Shajganj, District Jaunpur, and to restrain the respondents from harassing him. Counsel for the Power Distribution Corporation stated on instructions that the petitioner might file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to demand notice

HOLDING

Without expressing any opinion on merits, a writ challenging a demand notice is disposed of by granting liberty to submit an objection under Para 6.8 of the U.P. Electricity Supply Code, 2005 within four weeks; if so submitted, the distribution licensee shall decide it in accordance with law within the next four weeks after affording a reasonable opportunity of hearing, and no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 4-5

PRINCIPLE TAGS

alternative-remedy-statutory-appeal-6.8 The Court relegated the petitioner to a clause 6.8 objection against the demand notice and disposed of the writ without deciding merits. ¶ 4

demand-notice-objections-under-6.8(b)(i) The petitioner was given liberty to object to the impugned demand under Para 6.8, to be decided after hearing within a fixed period. ¶ 4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE IMPUGNED DEMAND NOTICE DATED 19.08.2021

The Court expressly declined to express any opinion on the merits of the petitioner's case. ¶ 4